

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

FRANCIS SHEKA KANU, *Complainant*

v.

EJIKE DICKSON EZE DBA EJIKE INTERNATIONAL TRADE LIMITED; SEALINES INTERNATIONAL; SEAMATES INTERNATIONAL, INC.; AND MAERSK, *Respondents*.

DOCKET NO. 25-05

Served: May 28, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER REQUIRING COMPLAINANT TO FILE MOTION FOR LEAVE TO AMEND AND PROPOSED AMENDED COMPLAINT

On May 6, 2025, I issued an Order to Show Cause (“OTSC”) that ordered Respondent Ejike Dickson Eze DBA Ejike International Trade Limited (“Ejike International Trade”) to respond to the Complainant’s Verified Complaint (“Complaint”) no later than May 20, 2025. The OTSC warned Ejike International Trade that failure to respond may result in the issuance of a default judgment against it.

Although Respondent Ejike International Trade failed to respond to the OTSC, upon consideration of the record, I do not enter default judgment against Ejike International Trade pursuant to 46 C.F.R. § 65(b) because Complainant fails to state a plausible claim for relief. Therefore, Complainant must file a Motion for Leave to Amend the Complaint, together with a Proposed Amended Complaint, **no later than June 4, 2025**. Failure to comply with this Order may result in the dismissal of Complainant’s claims against Ejike International Trade for failure to prosecute pursuant to 46 C.F.R. § 72(b).

I. Background

A. Allegations in the Complaint

On March 10, 2025, Complainant filed his Complaint.

In general, Complainant alleges that on June 5, 2021, he entered into a contract with Ejike International Trade that provided that he pay \$4,134 in order to have a container shipped from Charlotte, North Carolina, to Queen Elizabeth Port in Sierra Leone, with an estimated arrival date of August 25, 2021. (Complaint, ¶¶ IV.A-IV.C). The container was booked for transportation by Maersk through its agent SeaLines International and SeaMates International (“SeaLines”). (Complaint, ¶¶ IV.E-IV.F). The container, however, was routed through the wrong

booking number, and was shipped to Pointe Noire in Congo on November 18, 2021. (Complaint, ¶¶ IV.G-IV.H). In June 2022, an employee of SeaLines contacted Maersk, but Maersk offered no help other than providing an email address to the SeaLines employee. (Complaint, ¶ IV.L). Complainant's agent convened a meeting between Complainant, Ejike International Trade and a SeaLines's employee, where they agreed to hire an agent in Congo to facilitate moving the container to Sierra Leone with SeaLines defraying the cost. (Complaint, ¶¶ IV.E-IV.F). Nevertheless, Ejike International Trade demanded an additional \$2,000 from Complainant to have the container moved, which Complainant paid. (Complaint, ¶ IV.N). The check in the record is dated November 21, 2023, and states that it is for "demurrage on charges Port Noir[.]" (See Complaint, PDF page 63¹).

The Complainant argues he is entitled to \$80,000 in reparations. (Complaint, ¶ VII). He cites four statutory provisions to support his claim for reparations: 46 U.S.C. §§ 41102(a) and (c), 41104(a)(4), and 41301(a) (which Complainant refers to by its former citation, § 1710(a)). Complaint, ¶¶ IV.P.1-4).

B. OTSC

As noted in the introduction, on May 6, 2025, I issued the OTSC.

The OTSC noted that Respondent Ejike International Trade failed to respond to the Complaint, and required it to respond no later than May 20, 2025. The OTSC also warned Ejike International Trade that a default decision may be entered against it for failing to respond timely.

The OTSC was mailed to the address in the record for Ejike International Trade. There was no returned mail. Therefore, it appears that Ejike International Trade received the OTSC.

II. Analysis – Default Judgment is Not Entered Against Ejike International Trade

Ejike International Trade did not respond to the Complaint. A party to a proceeding may be deemed to be in default if that party fails: "to answer, to respond to a dispositive motion within the time provided, or otherwise to defend the proceeding[.]" (46 C.F.R. § 502.65(a)(2)). "When a party is found to be in default, the Commission or the presiding officer may issue a decision on default upon consideration of the record, including the complaint" (46 C.F.R. § 502.65(b)).

I considered the record. Assuming the allegations in the Complaint are true, and drawing reasonable inferences in Complainant's favor, (see *MAVL Capital, Inc. v. Marine Transp. Logistics, Inc.*, Dkt. No. 16-16, 2020 WL 13512925, at *5 (FMC Oct. 29, 2020) citing *Maher Terminals, LLC v. The Port Authority of New York and New Jersey*, 34 S.R.R. 35, 2015 WL 9426189, at *12 (FMC Dec. 18, 2015)), Complainant has not set forth any plausible claims against Ejike International Trade upon which relief may be granted. In particular:

- **Untimely** – Complainant seeks \$80,000 in reparations. A complainant may seek reparations for an injury caused by a violation of the Shipping Act "[i]f the

¹ The exhibits to the Complaint are not numbered. I refer to it by the PDF page.

complaint is filed within 3 years after the claim accrues.” (46 U.S.C. § 41301(a)). Complainant allegedly contracted for the transportation of a container in June 2021, and the container arrived in the wrong location in the fall of 2021. (*See* Complaint, ¶¶ IV.A-IV.G). These events occurred over three years before the complaint was filed on March 10, 2025. Non-monetary relief is not time-barred, but, as discussed below, Complainant alleges no plausible claim for relief.

- **Lack of Plausible Allegations of a Violation of § 41102(c)** – The Commission identified five elements of a claim under § 41102(c). (46 C.F.R. § 545.4). The second element is that the alleged acts or omissions are occurring on a normal, customary or continuing basis. The Complaint alleges that Complainant’s container was shipped to the wrong destination and the error was not corrected. (Complaint, ¶¶ IV.G-IV.O). Although the Complainant alleges that these facts show that Respondents failed to establish reasonable practices (*see* Complaint, ¶ IV.P.1.(a)-(c)), that is not sufficient to allege a plausible claim. A complaint must contain sufficient factual matter to “state a claim to relief that is plausible on its face.” (*Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 570 (2007)). A claim “has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged.” (*Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009)). “A pleading that offers ‘labels and conclusions’ or ‘a formulaic recitation of the elements of a cause of action will not do.’” (*Iqbal*, 556 U.S. at 678 (quoting *Twombly*, 550 U.S. at 555)). Alleging that a container was shipped to the wrong location, and asserting that there was a failure to establish a reasonable practice, without more, does not constitute a plausible claim that the act or omission was occurring on a normal, customary or continuing basis. Indeed, the Complainant alleges that it was “apparent and obvious” that there was “negligence[.]” (Complaint, ¶ IV.H), thereby undermining any allegation that the act or omission was occurring on a normal, customary or continuing basis.
- **Lack of Plausible Allegations of a Violation of § 41102(a)** – Complainant alleges a violation of § 41102(a).² That section provides that a person may not, by use of false or other unjust or unfair means: “obtain or attempt to obtain ocean transportation for property at less than the rates or charges that would otherwise apply.” There are no allegations in the Complaint of any attempt to obtain ocean transportation for property at lower rates or charges than would otherwise apply.

² The Complaint incorrectly quotes § 41102(a) as prohibiting “‘unfair or unreasonable practice in the handling of property.’” (Complaint, ¶ IV.P.3.). Under the heading of § 41102(a), the Complaint alleges a combination of common law claims (*e.g.*, Respondents made misrepresentations), as well as claims under § 41102(c) (such as failure to conduct fair and reasonable business practices). (Complaint, ¶¶ IV.P.3.(a)-(c)). Common law claims are not properly before the Commission. And, as noted in the main text, the claims under § 41102(c) fail because the Complaint does not plausibly allege that any act or omission is occurring on a normal, customary or continuing basis.

- **Lack of Plausible Allegations of a Violation of § 41104(a)(10)** – Section 41104(a)(10) states that: “A common carrier, either alone or in conjunction with any other person, directly or indirectly, may not . . . unreasonably refuse to deal or negotiate[.]”³ Complainant alleges that Ejike International Trade is an ocean freight forwarder and shipping agent. (Complaint, ¶¶ III. and IV.E). There is no allegation that Ejike International Trade is a common carrier. For that reason alone, Complainant appears to fail to state a claim under § 41104(a)(10). (*OJ Commerce v. Hamburg Südamerikanische Dampfschiffahrts-Gesellschaft A/S & C., KG and Hamburg Sud North American, Inc.*, Docket No. 21-11, 2024 WL 4034610, at *1 n.2 (FMC Aug. 27, 2024) (“The ALJ denied all claims against HSNA because it found HSNA not to be a common carrier, instead HSNA was acting as a disclosed agent on behalf of HSDG. I.D. at 37. Neither side challenged this conclusion, and no evidence suggests it should be reviewed. . . .”)).
- **Lack of Plausible Allegations of a Violation of § 41301** – Though the Complaint also references 46 U.S.C. § 41301(a) by its former citation, § 1710(a) (Complaint, ¶ IV.4), that section does not prohibit any conduct or otherwise provide a basis for a claim. Instead, that section permits the filing of a complaint.

Because there are no plausible claims for relief against Ejike International Trade, I do not issue a decision on default. Instead, due to a lack of plausible claims, I will allow Complainant to file a motion for leave to amend his complaint against Ejike International Trade, together with a proposed amended complaint against Ejike International Trade, **no later than June 4, 2025**. Failure to comply with this order may result in Complainant’s claims against Ejike International Trade to be dismissed for failure to prosecute pursuant to 46 C.F.R. § 72(b).⁴

III. ORDER

Based on the above, it is:

HEREBY ORDERED that **Complainant** must file leave to amend its complaint, together with a proposed amended complaint, **no later than June 4, 2025**.

Richard C.
Ambrow Jr -S

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Richard C. Ambrow Jr -S
Date: 2025.05.28
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Richard Ambrow
Administrative Law Judge

³ The statute was amended by the Ocean Shipping Reform Act of 2022 (“OSRA 22”), to add the following after “negotiate”: “, including with respect to vessel space accommodations provided by an ocean common carrier[.]” (*See* OSRA 22 (Pub. L. 117-146), Section 7(a)(1)(D)). Although OSRA 22 was effective June 16, 2022, the amendment does not appear to be relevant to this proceeding.

⁴ The Motions to Dismiss by Maersk and SeaLines, as well as the Complainant’s failure to respond to the Motions to Dismiss or the OTSC, will be addressed in a future order.